

STATE OF COLORADO

STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

Amos D. Martinez, Program Director

Department of Regulatory Agencies

Tambor Williams
Executive Director



Division of Registrations

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Bill Owens
Governor

March 22, 2005

ELIZABETH DARRAUGH NEAL, LPC
1 S. PENNSYLVANIA #303
DENVER, CO 80209

RE: Complaint Filed by Frank Bennett, Ph.D.
Case #2005-001369
Letter of Admonition

Dear Ms. Neal:

At its meeting on March 18, 2005, the Colorado Board of Licensed Professional Counselor Examiners (Board) reviewed the available material concerning the complaint filed against you by Frank Bennett, Ph.D.. This is the first step in deciding whether to institute a formal proceeding for discipline.

After thorough review and discussion, the Board found probable cause to believe you violated CRS 12-43-222(1)(g), (u), and (v) and issued this Letter of Admonition in accordance with CRS 12-43-224 (3)(d). Specifically, the Board determined:

You failed to act according to generally accepted standards for a licensed professional counselor, made incorrect entries in patient records, and affixed supervisor and client signatures in medical records, without authorization.

On the basis of the above findings, the Board hereby admonishes you for such practice and warns you that repetition of such practice may lead to imposition of more severe disciplinary action. This letter is an open public record and a reportable action to individuals or entities requesting disciplinary information. The Board strongly encourages you to review and understand the Mental Health Practice Act requirements and obligations for the practice of psychotherapy in Colorado.

In accordance with CRS 12-43-224(3)(d), the Board advises you that you have the right to make a written request that the Board initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty (20) days after receipt of this letter and address your request to Amos D. Martinez, Program Director, at the above letterhead address. If you make a timely request, the Board will deem this letter of admonition vacated and may proceed with disciplinary and/or injunctive proceedings in accordance with CRS 12-43-224(3)(d), and applicable rules.

If this letter is not vacated, it will become the final agency action in this matter.

Sincerely,

Cindy Musil
Board Chair

cc: Colorado State Grievance Board